

SOFT LANDING Company, INC.

CONFIDENTIAL NON-DISCLOSURE AGREEMENT WITH DATA PROTECTION

Effective Date: _____

This Confidential Non-Disclosure Agreement ("Agreement") is entered into by and between Soft Landing Company, and its partners and affiliates (collectively, "Discloser"), and the undersigned party ("Recipient"), as of the Effective Date above.

1. Description of Confidential Information

"Confidential Information" means any information disclosed during the Disclosure Period that is or should reasonably be understood to be confidential or proprietary to Discloser, including:

- Information about Discloser's business, products, services, finances, users, intellectual property, technology, plans, and the existence or terms of the Transaction
- **User data, personal health information, emotional wellness data, user behavior analytics, demographic information, and any information that could identify or relate to app users, even if anonymized or aggregated**
- **Mental health insights, user emotional patterns, crisis intervention data, and therapeutic interaction records**
- **AI model training data, user-generated content, and platform usage metrics**

"Transaction" means any potential investment, partnership, acquisition, or other business relationship between the parties.

2. Use of Confidential Information

Recipient will use Confidential Information solely to evaluate or pursue the Transaction. Recipient will not reverse-engineer, decompile, disassemble, or otherwise modify any disclosed software or technology unless prohibited by law.

3. User Data Protection

Recipient acknowledges that Confidential Information may include highly sensitive personal data related to users' mental health, emotional wellness, and crisis situations. Recipient agrees to:

a. **Handle all user-related data with the highest standard of care and in accordance with healthcare data protection standards** b. **Not attempt to re-identify any anonymized user data or cross-reference with external databases** c. **Comply with all applicable privacy laws including HIPAA, CCPA, GDPR, and state mental health privacy regulations where applicable** d. **Immediately notify Discloser within 24 hours of any potential data breach, unauthorized access, or suspected compromise of user data** e. **Not use user data for any artificial intelligence training, research purposes, or commercial applications outside of Transaction evaluation** f. **Implement appropriate technical and organizational safeguards to protect user data equivalent to those used for the most sensitive internal data** g. **Limit access to user data to only those employees, agents, or advisors with a legitimate need to know for Transaction evaluation purposes**

4. Confidentiality Period

Recipient's duty to protect Confidential Information continues for **seven (7) years** after the end of the Disclosure Period. However, **user data, personal health information, technical designs, customer data, source code, and similar information remain protected as long as they qualify as trade secrets under U.S. law or contain personal information subject to privacy regulations.**

5. Disclosure Period

This Agreement applies to Confidential Information disclosed between the Effective Date and one (1) year thereafter, unless extended in writing by both parties.

6. Standard of Care

a. Recipient will not disclose Confidential Information without Discloser's prior written consent, except to its employees, agents, or advisors who need to know and are bound by obligations at least as protective as this Agreement.

b. **For user data and personal health information, Recipient will use the highest degree of care, but never less than the standard required for protected health information under HIPAA.**

c. For all other Confidential Information, Recipient will use at least the same degree of care to protect such information as it uses for its own confidential information, but never less than reasonable care.

7. Exclusions

Information is not confidential if Recipient can show it: i. was already known without restriction; ii. becomes public through no fault of Recipient; iii. is rightfully received from a third party; iv. is independently developed without using Confidential Information; v. is required to be disclosed by law (Recipient will give notice to Discloser); or vi. is approved for disclosure in writing by Discloser.

Note: User data and personal health information cannot be considered "publicly available" even if disclosed publicly without authorization.

8. Warranty Disclaimer

All Confidential Information is provided "AS IS," without any warranties, including, but not limited to, accuracy or fitness for a particular purpose.

9. Other Business Activities

a. This Agreement does not create any partnership, joint venture, or agency. Discloser remains free to pursue similar transactions with others.

10. Ownership and Rights

No license or rights to Confidential Information are granted or implied; Discloser retains all rights.

11. Return or Destruction

Upon Discloser's written request, Recipient will return or destroy all Confidential Information (including copies and summaries) and certify completion within **five (5) business days**.

For user data and personal health information, Recipient must:

- **Use secure deletion methods that prevent data recovery**
- **Provide detailed written certification of destruction methods used**
- **Confirm that all backups, temporary files, and cached data have been securely deleted**
- **Ensure any third-party processors have also completed secure deletion**

12. Data Breach Notification

In the event of any unauthorized access, disclosure, or suspected compromise of user data, Recipient must:

- **Immediately notify Discloser within 24 hours of discovery**
- **Provide detailed information about the nature and scope of the incident**
- **Implement immediate containment measures**
- **Cooperate fully with any required regulatory notifications**
- **Bear all costs associated with breach notification and remediation**

13. Injunctive Relief

Discloser may seek injunctive relief and, if successful, may recover reasonable attorneys' fees and costs in enforcing this Agreement. **For violations involving user data, Recipient acknowledges that monetary damages may be inadequate and Discloser is entitled to immediate equitable relief.**

14. Nonwaiver

Any delay or failure to enforce any provision does not constitute a waiver of rights.

15. Miscellaneous

a. Any modification must be in writing and signed by both parties. b. This Agreement will be governed by **California law** (excluding conflict-of-laws rules), and disputes will be resolved in California courts. c. This Agreement may be executed as a PDF or via electronic signature and is deemed an original. d. Recipient may not assign this Agreement without Discloser's written consent. e. If any provision is deemed invalid, the remainder remains in effect.

By: _____

Print Name: _____

Title: _____

Date: _____

ACKNOWLEDGED AND AGREED:

By: _____

Print Name: _____

Title: _____

Date: _____

